

REGISTER OF WAGE DETERMINATION UNDER		U.S. DEPARTMENT OF LABOR
THE SERVICE CONTRACT ACT		EMPLOYMENT STANDARDS ADMINISTRATION
By direction of the Secretary		WAGE AND HOUR DIVISION
of Labor		WASHINGTON D.C. 20210
		Wage Determination No.: CBA-2025-261
Diane Koplewski	Division of	Revision No.: 0
Director	Wage Determinations	Date Of Last Revision: 06/12/2025

State: District of Columbia

Area: Washington, D.C.

Employed on NAVFAC contract for Regional Custodial Services for Naval District Washington.

Collective Bargaining Agreement between contractor: NJS Joint Venture, LLC, and
union: SERVICE EMPLOYEES INTERNATIONAL UNION Local Local 32BJ, effective 04/01/2024 through 03/30/2027.

In accordance with Section 2(a) and 4(c) of the Service Contract Act, as amended,
employees employed by the contractor(s) in performing services covered by the
Collective Bargaining Agreement(s) are to be paid wage rates and fringe benefits
set forth in the current collective bargaining agreement and modified extension
agreement(s).

COLLECTIVE BARGAINING AGREEMENT

BETWEEN

**SERVICE EMPLOYEES INTERNATIONAL UNION,
LOCAL 32BJ**

AND

NJS, JOINT VENTURE, LLC

LOCATION: NAVAL OBSERVATORY, WASHINGTON DC

EFFECTIVE: APRIL 1, 2024

EXPIRE: MARCH 30, 2027

PREAMBLE

This Agreement is entered into as of April 1, 2024 by and between NJS, Joint Venture ("NJS") and Service Employees International Union, Local 32BJ ("Union"). As used hereinafter in this agreement, the term "Employer" shall mean the legal entities that comprise NJS, which are J&J Maintenance, Inc. d/b/a J&J Worldwide Services, Inc. and Nugate Group, LLC.

ARTICLE 1 - - DECLARATION OF PURPOSE

SECTION 1.1. The purpose of this Agreement is to ensure industrial peace by setting forth herein rates of pay, hours of work and conditions of employment to be observed between the parties hereto. The parties hereto recognize that only with mutual understanding, harmony and cooperation among Employees, and between Employees, the Union, and the Employer, and with uninterrupted operation is it possible to conduct the Employer's business with the economy and efficiency indispensable to its existence and to the best interests of its Employees, clients and customers.

ARTICLE 2 - UNION RECOGNITION SCOPE OF AGREEMENT

SECTION 2.1. The Employer recognizes the Union as the sole collective bargaining agent for all custodial Employees employed by the Employer at the Naval Observatory, Washington DC, excluding office clerical employees, guards and/or watchmen and supervisors as defined in the National Labor Relations Act, as amended, and excluding all other employees in accordance with the National Labor Relations Act.

ARTICLE 3 - UNION SECURITY/CHECK-OFF

SECTION 3.1. All employees who are members of the Union on the effective date of this Agreement, or join hereafter, shall maintain their membership, or satisfy the financial obligations set by the Union during the term of this Agreement as a condition of continued employment. All employees covered by this Agreement who are not members of the Union and choose not to become members of the Union shall, as a condition of continued employment, pay to the Union an agency fee as established by the Union. All employees hired after the effective date of this Agreement shall, on the thirty first (31) day following the date of execution of the agreement, effective date of agreement, or date of employment, whichever is later, become members or agency fee payers as a condition of continued employment. Employees meet the requirement of being members of the Union within the meaning of this Article, by tendering the periodic dues and initiation fees uniformly required as a condition of acquiring or retaining membership in the Union, or, in the alternative, by tendering to the Union agency fees, including initiation fees in compliance with Federal Law.

SECTION 3.2. Upon receipt by the Employer of a letter from the Union's Secretary-Treasurer requesting an employee's discharge because he or she has not met the requirements of this Article, unless the Employer questions the propriety of doing so, the employee shall be discharged within fifteen (15) days of the letter if prior thereto the employee does not take proper steps to meet the requirements.

SECTION 3.3. The employer shall notify the Shop Steward of all new hires in the bargaining unit within thirty (30) days of the date of hire.

SECTION 3.4. The Employer agrees to deduct monthly dues, initiation fees, agency fees, American Dream Fund or Political Action Fund contributions from the wages of an employee covered by this Agreement, when authorized by the employee in writing in accordance with applicable law. The Union will furnish the necessary authorization forms to the Employer. At the same time the Employer remits its dues each month, the Employer shall provide the Union a list of employees by accounts, and include the name, social security number, date of birth, date of hire, and/or termination date, and Union deduction, if made.

SECTION 3.5. The employer shall make employee approved deductions twice a month (10th and 25th paydays) and shall submit the dues and other authorized fees to the Union by the 20th of the following month.

SECTION 3.6. The Union agrees to indemnify and save the Employer harmless against any claim, suits, judgments or liabilities of any sort whatsoever arising out of action taken by the Employer for the purpose of complying with the provisions of this Article.

The Employer shall transmit dues, political contributions, initiation fees deducted from employees' paychecks to the Union electronically via ACH utilizing the 32BJ self-service portal, unless the Union directs in writing that dues be remitted by means other than electronic transmittals. The transmission shall be accompanied with information for whom the dues are transmitted, the amount of dues payment for each employee, the employee's wage rate, the employee's date of hire, the employee's location or location change, whether the employee is part-time or full-time, the employee's social security number, the employee's address and the employee's classification. The Union shall provide any necessary training opportunity to the employer to facilitate electronic transmissions.

ARTICLE 4 - MANAGEMENT RIGHTS

Section 4.1. Except as specifically limited by the express provisions of this Agreement, the Company retains exclusively to itself the traditional rights to operate and manage its business and to direct its employees, which shall include, but are not limited to the following rights:

- (a) To establish or continue policies, practices, and procedures for the conduct of the business and, from time to time, to change or abolish such policies, practices, or procedures.
- (b) To determine and, from time to time, to re-determine the methods, processes, and materials to be employed.
- (c) To discontinue processes or operations of the Company.

- (d) To establish work and quality standards.
- (e) To determine the number of hours per day or week that operations shall be carried on.
- (f) To establish day and night shifts, to set the hours of work and the number of employees for such shifts., and from time to time to change the shifts and the hours and employees thereof.
- (g) To determine and to select the equipment to be used in the Company's operations and, from time to time, to change or to discontinue the use of any equipment and to select new equipment for its operations, including equipment for new operations.
- (h) To select and to determine the number and type of employees required.
- (i) To assign work to such employees in accordance with the requirements determined by management.
- (j) To establish and change work schedules and assignments.
- (k) To hire, set and determine qualifications for employment, transfer, promote or to lay-off, terminate, or otherwise relieve employees from duty for lack of work.
- (l) To establish, modify and abolish job classifications with advance notice to the Union.
- (m) To make and enforce safety rules and standards of conduct governing the conduct of employees, with advanced notice to the Union.
- (n) To suspend, discharge, demote, or otherwise discipline employees for just cause.
- (o) To evaluate employees using performance reviews or other similar employee job performance rating systems.

SECTION 4.2. The Company reserves the sole and exclusive authority to draft, issue, implement, revise, enforce and withdraw reasonable rules of conduct, safety rules and protocols and other reasonable regulations as the Company deems necessary. However, such rules and regulations shall not be inconsistent with the provisions of this Agreement. The Company will provide copies of such rules and regulations, and any changes thereto, to the Union at least seven (7) calendar

days before their implementation. Any infraction of the rules and regulations, once implemented, constitutes just cause for disciplinary action, including discharge.

Section 4.3. The list of management rights set forth in this Article is not intended to be nor shall it be construed as a restriction or waiver of any rights of the Company not listed and not specifically surrendered in this Agreement, whether or not such rights have been exercised in the past.

Section 4.4. Supervisors, employees and others not covered by the terms of this Agreement shall be permitted to perform work covered by this Agreement only on an incidental basis in the following cases:

- a) In emergency cases;
- b) In cases wherein bargaining unit employees are out sick, on vacation or for other reasons and there are no other bargaining unit employees who are available and qualified to perform such work.

ARTICLE 5 - GOVERNMENT REQUIREMENTS

SECTION 5.1. The Union agrees to cooperate with the Company in all matters required by the Government, and the Union recognizes that the term and conditions of the Agreement are subject to certain priorities which the Government may exercise. The Union agrees that any actions taken by the Company pursuant to a requirement of the Government or at the direction of the Government shall not constitute a breach of this Agreement. Nothing in this Agreement shall be construed to prevent institution of any change where immediate change is required by the Government. The company will, however, notify the Union in advance and negotiate with the Union concerning the effects of any such change.

SECTION 5.2. If the Government directs that a specific employee be removed from the contract or otherwise disciplined or reassigned, any such action directed may be undertaken by the Company and shall not be subject to the grievance or arbitration procedures of this Agreement. In the event that the Government expressly directs the removal, discipline or reassignment of a contract employee, the Company agrees to cooperate with the Union by providing it with all relevant information. The Union will file a grievance if the company does not provide all relevant information.

SECTION 5.3. It is recognized and acknowledged that the work performed under this Agreement is being performed at a Government facility and it is therefore essential and expected that all employees will act in a manner appropriate to such an environment. It is further recognized and acknowledged that the Government imposes specific requirements concerning the manner in which the work under this Agreement is to be performed, and it is essential and expected that all employees comply with such requirements.

SECTION 5.4. The parties agree that if the government contests the outcome of these negotiations in accordance with the Service Contract Act, the parties will take actions necessary in accordance with applicable laws to reach a collective bargaining agreement. In the event that the applicable

Government entity does not approve any economic term in this collective bargaining agreement, including, but not limited to, wage rates, benefit fund contributions, and/or other supplemental benefits, the Employer and the Union agree to meet immediately to resume contract negotiations with respect to these issues.

SECTION 5.5. Employees shall be experienced, qualified and capable to meet contract performance requirements of the Government contract. Employees will complete all required training assigned by the Employer. Personnel shall be fully knowledgeable of all safety, environmental and energy requirements associated with the work they perform. Personnel shall speak, read and comprehend English to the extent that they can perform contract requirements and comply with installation emergency procedures.

SECTION 5.6. The Union shall be notified in advance of any disciplinary action taken by the Employer in accordance with Section 5.5. An employee will be given a reasonable opportunity to update his or her language skills subject to government approval if necessary.

ARTICLE 6 – WAGES

SECTION 6.1. The Employer agrees to pay the hourly minimum wages as follows:

	Effective 4/1/2024	Effective 4/1/2025	Effective 4/1/2026
Custodian	\$17.75	\$18.25	\$18.75
Lead	\$18.25	\$18.75	\$19.25

SECTION 6.2. The Parties understand that several times a year the Employer's customer may require certain floor care as follows:

COL3:

- Concrete, rubber, wood floors
 - Strip & Wax
 - 1x per year
 - Buffing(as required)
- Carpet Cleaning
 - 1x every two years

PRESTIGE:

- Concrete, rubber, wood floors
 - Strip & Wax
 - 2x per year
- Carpet Cleaning
 - 1x per year

Employees shall receive an additional \$.90/hr to their base wages when required to perform Floor Care duties as described above.

ARTICLE 7 - SENIORITY/LENGTH OF SERVICE

SECTION 7.1. The Employee's length of service shall be computed from the date on which he/she is hired by the Employer or his/her date of employment at the Naval Observatory, whichever is longer.

SECTION 7.2. Layoffs will be determined by length of continuous service at the Naval Observatory the Employees with the least amount of continuous service and ability to perform the job shall be laid off first. Recall of laid off Employees shall be in the reverse order of layoff, subject to ability to perform the job. An Employee duly notified by the Employer to return to the job, must return to such job.

An Employee's continuous service shall be broken and seniority shall cease upon:

- Just cause discharge
- Voluntary resignation
- Absence for three (3) working days, unless excused by the Employer by reason of illness or other unexcused disability or other reasonable cause.
- Failure of an Employee to return to work upon recall within five (5) working days after written notice is sent by the Employer to their last known address.
- Layoff status for more than twelve (12) months

SECTION 7.3. New employees shall be on probation until completion of ninety (90) calendar days of service from the date of hire. During this probationary period, such Employees can be immediately discharged by the Employer without recourse to the Grievance and Arbitration procedure in Article 8. Upon completion of ninety (90) calendar days, such Employee shall enjoy seniority status from the date of hire.

ARTICLE 8 - GRIEVANCE PROCEDURE

SECTION 8.1. It is agreed that any dispute arising out of this Agreement between an Employee and the Employer or the Union and the Employer shall be resolved using the procedure set out below.

Step 1. The Employee and the shop steward and the immediate supervisor and/or designee shall attempt to resolve any differences at the time they arise through a meeting within ten (10) working days of the incident giving rise to the grievance. In the event they are unable to resolve the issue and/or if the meeting is not held within ten (working days), the grievance shall be considered denied and the grievance can proceed to Step 2.

Step 2. The union must reduce the grievance to writing and present it to the Company's Corporate Human Resources Manager no later than ten (10) working days of the step 1 meeting. The Corporate Human Resources Manager and the Union Representative shall meet within ten (10) working days of the Step One meeting to attempt to resolve the issue. Such meeting may be held by telephone, video, or electronic means. If they are unable to resolve the issue, or if they are unable to meet within ten (10) working days, the grievance shall be deemed denied, then the

grievance can be referred to Step 3.

Step 3. If the grievance is not resolved at Step 2, the Union may submit the grievance to arbitration within twenty (20) working days from the denial of the grievance at Step 2 by submitting a written demand for arbitration to the Corporate Human Resources Manager and Federal Mediation and Conciliation Services (FMCS).

The demand for arbitration shall include a summary of the issue and identify the provisions of the Agreement allegedly violated and the remedy requested.

SECTION 8.2. Arbitration.

- A. Unless the Parties mutually agree on an arbitrator, the party demanding arbitration will request the Federal Mediation and Conciliation Service ("FMCS") to supply a panel list of at least seven (7) potential arbitrators. The parties will then, in turn, beginning with the party requesting arbitration, strike off an arbitrator's name until only one (1) arbitrator is left who shall be the arbitrator designated to preside over the case. Either party may make one request for a second panel before initiating the strike process. The fees of the arbitrator and necessary expenses, including transcript, if requested by both parties, of any arbitration proceeding shall be borne equally by the Company and the Union except that each party shall pay its own costs, including but not limited to the fees of its own counsel or representative, or witness transportation, copying costs of exhibits, etc.
- B. The decision of the arbitrator shall be final and binding. The arbitrator shall have no authority to modify, amend, revise, add to, or subtract from any of the terms or conditions of this Agreement.
- C. The parties will make every effort to have the arbitration scheduled as soon as practicable.
- D. A written award shall be made by the Arbitrator within thirty (30) days after the hearing closes. If an award is not timely rendered, either the Union or the Employer may demand in writing of the Arbitrator that the award must be made within ten (10) more days. By mutual consent of the Union and Employer, the time for both the scheduling of the hearing and issuance of the award may be extended. Upon the joint request of all parties, the Arbitrator shall issue a "bench decision" with written award to follow within the required time period.

SECTION 8.3 A grievance involving discharge or a suspension of an employee shall be brought directly to Step 2 and must be filed in writing stating that the Union requests a Step 2 level meeting, within ten (10) working days of discharge or suspension.

SECTION 8.4 At any Step of the grievance procedure, the Company or the Union may designate a substitute for the official designated herein.

SECTION 8.5 Any agreement to extend any of the time limits set forth in this Article must be in writing and agreed by both parties.

SECTION 8.6. Time Limits

- A. Time limits in this Article shall exclude Saturday, Sunday and paid holidays.
- B. The time limits in this Article may be extended, in writing, by mutual agreement of both parties.
- C. If the Employer fails to respond within the time limits prescribed, the grievance shall be considered denied and processed to the next step in the grievance procedure.
- D. If the Union fails to respond within the time limits, the submitted grievance shall be considered withdrawn and settled.

ARTICLE 9 – DISCHARGE AND DISCIPLINE

SECTION 9.1. It is agreed that each party shall treat the other with mutual respect and dignity and that the employer shall only discharge or discipline Employees for just cause. Discipline must be given in writing within ten (10) working days of the completion of the investigation by the Employer. The Employer agrees to use progressive discipline , except for offenses listed in Section 9.2. Disciplinary actions will not be used as a basis for additional progressive discipline or any type of discipline after twelve (12) months of issuance.

SECTION 9.2. The Company, as part of its management rights, has the right to discipline, suspend, demote or discharge for just cause. For purposes of clarity it is stipulated that just cause for immediate discharge shall include, but shall not be limited to, the following:

- Deception, illegal or unethical acts detrimental to the employment relationship
- Intentional falsification of timecards, time clock, or time sheets, or other Company or government documentation.
- Willful or negligent endangering of the safety of others; or violation of safety rules
- Insubordination and/or use of abusive language toward other employees or company/government officials;
- Consuming or otherwise being under the influence of alcohol or illegal drugs while working or on the Company's premises, or refusing to take a post-accident drug test or a drug test based on reasonable suspicion
- Use or possession of any intoxicant, drug or narcotic on the Company's premises, or reporting for work in a condition indicating that the employee has been drinking or is under the influence of any form of intoxicant, drug or narcotic, or alcohol;
- Falsifying any employment record, time record or other Company and/or Government record or document;
- Possession of firearms, explosives, or other weapons on Company or government property;
- Theft from the Employer, government, or another employee;
- Sleeping on the job;
- Fighting while on the premises or threatening another individual.
- Disrespectful conduct to the Employer's customer

- Any other egregious misconduct warranting discharge.

SECTION 9.3. All employees shall have the right to have a steward present at any investigative meeting that the employee reasonably believes might lead to discipline. It is the employee's responsibility to request that the steward be present. The Shop Steward shall be present at all disciplinary meetings of employees if requested by the employee and a Shop Steward is at the project site. If no Shop Steward is present, the employer will do one of the following: (1) not conduct the meeting, (2) reschedule the meeting for a later date when a Shop Steward is available, or (3) at the Employee's discretion, proceed without the Shop Steward.

ARTICLE 10 - HOURS OF WORK

SECTION 10.1. The term "Full-time Employees" as used in this Agreement, applies to those individuals who are regularly scheduled to work forty (40) hours and thirty-five (35) hours every week. The term "part-time Employees" applies to those individuals regularly scheduled to work less than thirty (30) hours every week.

SECTION 10.2. Full-time employees normally scheduled for forty-(40) hours per week will be divided into five (5) days of eight (8) hours each day. Full-time employees normally scheduled for thirty-five (35) hours will be divided into five (5) days of seven (7) hours each day. Part-time employees are normally scheduled for thirty (30) hours or less per week, including workers assigned to work on the weekends. The Employer may be required to change these hours to comply with their government contract or as otherwise provided by the management rights provision of this Agreement.

SECTION 10.3. Overtime, when necessary, can be required and scheduled by the Employer and will normally be offered to the most senior Employee whom the Employer determines has the appropriate skill levels and qualifications. If that Employee refuses overtime, it shall be offered to the next most senior person and so on through the seniority list until the work is undertaken or the list exhausted. In the event the list is exhausted, the Employer shall require the least senior Employee to work and if more than one Employee is necessary, the assignment shall continue in reverse order.

SECTION 10.4. An employee called in outside his/her regular work schedule shall be guaranteed a minimum of four (4) consecutive hours of work or pay in lieu thereof.

SECTION 10.5. If the Naval Observatory is closed for whatever reason and not made available to any personnel of the Employer and if the Employer is paid by the Government for days the Naval Observatory is closed, the employees covered by this agreement also will be paid. If Naval Observatory is closed due to a dignitary visit such as the U.S. President or a Secretary or due to a snow fall or other inclement weather that triggers a state or local emergency the employees shall not be disciplined, penalized with pay deduction or lose any holiday pay for being late to work, provided that the employee called his supervisor to report the reason why he or she cannot make it to the post.

SECTION 10.6. When there is an error in the pay of an employee over \$50, the Employer

will, whenever possible, correct the error within seven (7) working days from the date the employee reports the error to his/her account manager. All other adjustments shall normally be made in the next payroll check.

SECTION 10.7. SNOW DAY: In instances of inclement weather where the Employer is required to assign persons for snow removal, such assignments shall be made from a volunteer list by seniority. Should the use of the list not produce the required number of persons the Employer may ask for volunteers or draft qualified personnel in inverse seniority order.

SECTION 10.8. GRACE PERIOD: All employees will be granted a five (5) minute grace period, with the understanding that the grace period will be available no more than three (3) times within every month. After the third (3) time in a month, employees will be docked and may be subject to discipline. The failure to clock in or out will subject an employee to disciplinary action unless there is a time clock malfunction that is immediately reported to the supervisor.

ARTICLE 11 - UNION RIGHTS

SECTION 11.1. Unless not permitted by the government, the Employer shall provide space for Union literature in a place convenient for Employee use. Such literature should be limited to Union business and may not include material that is defamatory, disparaging, or incendiary against the Company or the Government.

SECTION 11.2. Each Employee shall have the right to inspect his/her personnel file annually, during normal office working hours (Monday to Friday) and with twenty four (24) hours advanced notice to the Director of Human Resources in the main office. The employee will review his/her personnel file in the presence of Human Resources Director or designee and may not take any pages from his/her personnel file. The employee may request copies of his/her personnel file. The Director of Human Resources will not deny this right unjustly.

SECTION 11.3 UNION LEAVE: - The Employer shall provide employees with reasonable, unpaid leaves of absence for union-related activities, where practicable, Employees on Union-related leave shall accrue seniority during the leave period, which shall not last more than four (4) weeks. The Union and Employer shall discuss the number and duration of such leaves of absence in any period of time.

SECTION 11.4. The Union may designate one Union steward. The Employer agrees to recognize the Union Stewards who are designated by the Union as the representative of the Union at the work-site. As business needs allow, and only if prior approval is granted, the Steward shall be permitted one (1) hour to investigate or adjust grievances on work-time as long as the Steward does not disrupt operations or the work being performed. In doing so, Stewards and Union officers shall not interfere with the management of the Company's business or the work of any employee, but may advise the Company of any alleged violations of the Agreement. Stewards and Union officers may not interview any employee or otherwise conduct Union related business with any employee while such employee is on duty or in working locations, unless prior approval is given by the Company. Nor shall any employee conduct Union related business while on duty without permission.

Subject to government rules and requirements, Stewards are authorized to remain on the premises for such reasonable periods as are required to meet their union responsibilities, and employees whom a steward or union official wish to interview may remain on the premises for such reasonable period following their shift as will enable the desired interview to take place.

Employer property, equipment and office facilities shall not be used to conduct any form of Union related business without prior approval by the Company. Employees who violate this section will be subject to disciplinary action. Union representatives must satisfy all security requirements imposed by the Government in order to gain access to a secure work site location. The Employer will cooperate with the Union to obtain approvals required by the Naval Observatory for Union Officials to enter for union related activities. Union officers and representatives must provide at least twelve (12) hours advanced notice to the Employer before arriving at the facility and will be provided access to the facility solely for the purpose of having regular Union meetings, investigating specific grievances or complains relating to the provisions of this Agreement or insuring the terms and conditions of this Agreement are being complied with. The Union Representative shall adhere to the base's safety and security policies while visiting the site. The Union Representative shall notify the Program Manager or his designee, when they are leaving the facility.

ARTICLE 12 – HOLIDAYS

SECTION 12.1. The Employer shall grant to all Employees the following holidays off with pay:

New Year's Day	Labor Day
Martin Luther King's Birthday	Columbus Day
George Washington's Birthday	Veteran's Day
Memorial Day	Thanksgiving Day
Independence Day	Christmas Day
Juneteenth	

SECTION 12.2. And all future holidays declared as legal by United States Congress, and/or by the President of the United States, and approved by the contracting officer, shall be considered paid holidays under this Article.

All employees required to work on any one of the holidays listed above shall receive holiday pay in addition to their regular work hours pay. Part Time employees shall be entitled to Holiday pay on a pro-rated scale by the number of hour's regularly scheduled to work in a week divided by five (5).

SECTION 12.3 When a legal holiday covered by this Agreement falls on an Employee's day off from his/her regular schedule, the Employee shall be compensated a full day at his/her straight time hourly rate of pay, or in lieu thereof the Employee shall receive a day off with pay within a period two weeks before or after such holiday.

SECTION 12.4. In order to be eligible for holiday pay, an Employee must work the day before and after the holiday, unless he/she is on a previously scheduled paid leave or within the grace period guidelines of section 10.8. If an employee is late for reasons beyond his control or leaves his/her shift

early with approval of his supervisor the day before or after a holiday included in this Agreement, the employee shall not lose such a holiday. Management may request proof of the reason to be late or leave early in order to approve it.

SECTION 12.5 An employee who is assigned to work on a holiday and refuses or fails to report shall be subject to discipline at the Company's discretion.

SECTION 12.6. Holiday pay shall not be used for the purpose of computing overtime.

ARTICLE 13 – VACATION

SECTION 13.1. Employees shall receive paid vacation based on the following schedule:

YEARS OF SERVICE	DAYS OF PAID VACATION
1 year	5 days.
2 years	10 days
5 years	15 days
10 years	20 days

SECTION 13.2. Vacation shall be with pay at the Employee's current hourly rate of pay, based on the regularly scheduled number of hours worked per day. Each Employee shall be given vacation at the time mutually agreed upon by the Employee and the Employer. The Employer in determining vacation preference shall consider seniority. Once the vacation period is authorized and scheduled, the time for taking such vacation shall not be changed unless the change is mutually agreed upon between the Employee and the Employer.

SECTION 13.3. Vacation is earned and is available for use, upon approval, on the employee's anniversary date. In compliance with the McNamara-O'Hara Service Contract Act (SCA), there is no accrual or vesting of vacation prior to the employee's anniversary date.

SECTION 13.4. Length of service includes the whole span of continuous service with the present (successor) contractor wherever employed, and with predecessor contractor in the performance of similar work at the same federal facility. Employees have to give at least thirty (30) days advanced notice to management for vacation with pay.

SECTION 13.5. When a holiday occurs during the Employee's vacation, the holiday will be paid as holiday pay not as vacation pay.

SECTION 13.6. The Employee may use vacation leave in increments of less than one week for purposes of a personal emergency or extended sick leave. Vacation time can only be used for extended sick leave provided the Employee has used up his/her accrued sick leave and provided he/she provides a doctor's excuse when requested by the Employer. The Employee's request for vacation leave shall not be unreasonably denied provided the Employee notifies the Employer in a timely manner.

SECTION 13.7. The Employer agrees to pay all employees for all unused earned vacation upon

separation on the next practical pay day.

SECTION 13.8. Any unused vacation leave shall be paid out on the pay cycle preceding the employee's next anniversary date.

ARTICLE 14 - LEAVE OF ABSENCE

SECTION 14.1. An employee who is a member of the military or reserve will be granted all leave and other rights provided by law. All statutes and valid regulations about reinstatement and employment of veterans shall be observed.

SECTION 14.2. The Employer agrees to comply with the provisions of applicable state and federal family leave laws, including but not limited to the Family and Medical Leave Act ("FMLA leave") and the Employer's FMLA Policy.

SECTION 14.3. Except for military leave, FMLA leave, or other legally required leaves of absence, employees may be granted unpaid leaves-of-absence for up to ninety (90) days at the sole discretion of the Company. Such leave-of-absence may be granted for medical reasons including but not limited to treatment and for personal emergency reasons and shall not prejudice seniority status for purposes of layoffs and recalls. Unless otherwise agreed to in writing by the Company, an employee will be required to use all paid leave (vacation and sick) before taking unpaid leave. For such leaves of absence, the Company may request, and employees shall be required to provide, documentation of the emergency or medical reason that justifies the leave to the extent permitted by applicable law. The payment of health insurance after thirty (30) days of leave shall be the responsibility of the employee unless otherwise required by federal, state, and/or local law.

ARTICLE 15 - BEREAVEMENT LEAVE

SECTION 15.1. An employee who has a death in his/her immediate family, defined as: mother, father, spouse, son, daughter, sister, brother, son and daughter-in-law, grandparents, mother-in-law, father-in-law, grandchildren, stepparents, stepchildren, or a member of the immediate family either through adoption or guardianship, shall be paid up to and including three (3) days' regular pay for time missed within one (1) week of the funeral and/or death. The number of hours per day for which the Employee shall be entitled to payment shall be equal to the number of hours per day for which the Employee would otherwise have been scheduled to work. Employees will be required to provide proof (funeral itinerary/obituary) to management in order to be paid bereavement leave.

SECTION 15.2. Should such a funeral and/or service take place more than 100 miles requiring travel time in excess of three (3) days, the Employee may have two (2) additional days off without pay, for the purpose of attending such funeral. Employees may request additional leave, and such leave will be granted at the sole discretion of the Employer.

ARTICLE 16 - JURY DUTY

SECTION 16.1. An Employee who is called for jury service during their work hours shall be excused from work for the days on which they report for service by order of the court, and shall receive for each such day on which they would otherwise have worked, the difference between the straight time hourly rate of pay and the payment received from jury service. An Employee who is called to jury duty must

provide proof of service and payment from the Court.

ARTICLE 17 - HEALTH AND WELFARE

SECTION 17.1. The Employer shall pay all employees the H&W contribution up to 40 hours per week as cash supplemental as follows:

Effective April 1, 2024: \$5.95 per paid hour

Effective April 1, 2025: \$6.20 per paid hour

Effective April 1, 2026: \$6.40 per paid hour

ARTICLE 18 – (401K) SUPPLEMENTAL RETIREMENT SAVINGS FUND

SECTION 18.1. Effective April 1, 2024, the Employer shall make contributions (per paid hour, up to 40 hours per week) to a trust known as the “Building Service 32BJ Supplemental Retirement and Savings Fund” (“SRSF”) to cover all bargaining unit employees, with employer contributions as hereinafter provided and tax exempt employee wage deferrals as provided by the SRSF Plan and/or SRSF Plan rules. The Employer contributions to the SRSF will be as follows:

Effective:	4/1/2024	4/1/2025	4/1/2026
	\$1.10 / per paid hour	\$1.20 /per paid hour	\$1.25 per paid hour

SECTION 18.2. If the Employer fails to make required reports or payments to the Funds, the Trustees may in their sole and absolute discretion take any action necessary, including but not limited to immediate arbitration and suits at law, to enforce: such reports and payments, together with interest and, liquidated damages as provided in the Funds' trust agreements, and any and all expenses of collection, including but not limited to counsel fees, arbitration costs and fees and court costs. If the Employer is regularly or consistently delinquent in Fund payments, the Employer may be required, at the option of the Trustees, to provide the appropriate Trust Fund with security guaranteeing prompt payment of such payments. By agreeing to make the required payments into the Funds, the Employer hereby adopts and shall be bound by the Agreement and Declaration of Trust as it may be amended and the rules and regulations adopted or hereafter adopted by the Trustees of each Fund in connection with the provision and administration of benefits and the collection of contributions. The Trustees of the Funds shall make such amendments to the Trust Agreements, and shall adopt such regulations as may be required to conform to applicable law.

ARTICLE 19 - SICK LEAVE

SECTION 19.1. Accrued but unused sick leave days are not paid out at the end of the year and are not paid out upon separation of employment for any reason. Unused sick leave shall carryover from year to year only to the extent required by, and in accordance with, Executive Order 13706. Employees may not use more than fourteen (14) paid sick days in a year inclusive of carryover days.

- All employees will be entitled eleven (11) sick days per year inclusive of sick leave already accrued

SECTION 19.2. An employee may use paid sick leave for an absence resulting from the following:

- The employee's own physical or mental illness, injury, or medical condition;
- Obtaining diagnosis, care, or preventive care from a health care provider by the employee;
- Caring for the employee's family member with a physical or mental illness, injury, or medical condition or for obtaining diagnosis, care or preventative care from a health care provider by the family member, or the family member is otherwise in need of care;
- Domestic violence, sexual assault, or stalking, where the employee or a family member is a victim, including to obtain counseling, seek relocation, seek assistance from a victim services organization, or take legal action.

For purposes of this policy, "family member" shall include the employee's child, parent, spouse, domestic partner, or any other individual related by blood or affinity whose close association with the employee is the equivalent of a family relationship.

Employees must use paid sick leave in 1-hour increments.

If the need for leave is for preventative care or is otherwise foreseeable, the employee is encouraged to make reasonable efforts to schedule absences so as not to unduly disrupt operations.

If an employee with accrued paid sick leave takes leave under the Family and Medical Leave Act policy, all accrued paid sick leave must be used before leave is unpaid. Paid sick leave will run concurrently to Family and Medical Leave.

All unused sick leave and/or earned vacation must be used before an employee will be permitted to use unpaid leave for any reason within the year, unless otherwise agreed. There will be no carry over other than in SECTION 19.1 above, and no pay out of unused sick leave.

SECTION 19.3. An employee requesting sick leave for the reasons in SECTION 19.2 must contact the Employer by contacting their direct supervisor and informing him/her of the need for leave for a purpose described in this article and the anticipated duration of the leave, if reasonably feasible. The employee shall make a good faith effort to provide a reasonable estimate of the length of the requested absence. When an employee wants to use accrued paid sick leave and the reason for the absence is foreseeable, the employee must request the leave at least 7 calendar days in advance of the absence. When the need for the absence is not foreseeable, employees must request to use accrued paid sick leave as soon as practicable, which in most cases should be at least 2 hours before the start of the employee's shift.

SECTION 19.4. When an employee is absent for more than 3 consecutive full working days, the employee must provide certification or documentation from a health care provider. If the paid

sick leave is used for an absence resulting from domestic violence, sexual assault or stalking, documentation may be from a health care provider, counselor, victim representative, attorney, clergy member, family member, or close friend; and self-certification is also permitted.

All medical documentation and documents related to domestic violence, sexual assault and stalking will be kept confidential unless disclosure is required or permitted by law.

An employee who does not provide medical certification (for absences of more than three (3) consecutive full working days) that he/she is able to return to work, if required or requested under this Article, will not be permitted to return to work.

SECTION 19.5. Engaging in fraud in connection with paid sick leave or obtaining paid sick leave under false pretenses may result in discipline up to and including termination of employment.

ARTICLE 20 - GENERAL WORKING CONDITIONS

SECTION 20.1 -UNIFORMS: The Employer agrees that if any Employee is required to wear any type of uniform as a condition of his/her continued employment, such uniforms shall be furnished by the Employer and maintained by the Employee. Upon request, the Employer agrees to provide at least four (4) uniform shirts per calendar year on or before each option year (April 1).

Article 21 LAYOFFS AND RECALLS

SECTION 21.1 Notification: The Employer agrees to notify the Union as soon as reasonably possible in the event of layoffs. The Employer further agrees that all layoffs will be in reverse order of seniority, by classification, and recall employees in order of seniority by classification, provided the employee is able to perform the work. Employees shall be returned to their former classification.

SECTION 21.2 - Duration: All employees laid off will remain on the layoff list for a period of up to one (1) year. The Employer shall make reasonable effort to place employees at other Company locations if there is availability. When work becomes available, the Employer shall send the employee a Certified Company letter to the employee's last known address, recalling the employee to work. The employee has five (5) working days, after receiving the letter to make arrangements to return to work to maintain his/her seniority. The Employer agrees that the employee rehired from layoff status shall be given reasonable advance notice of the date to report back to duty, but in no case exceeding seven (7) business days from date of recall notice. The Employer shall send copies of any applicable recall notice to the Union within five (5) working days after mailing them.

Article 22 - PROMOTIONS AND VACANCIES

SECTION 22.1 - Consideration: Consideration shall be given to those employees, already employed in the building by the Employer, in filling vacancies, and when a new position is created. Seniority shall prevail when qualifications are equal. Nothing herein shall prohibit the employer,

in its sole discretion, from hiring outside the Company to fill any vacancy or promotion if no employee is sufficiently qualified for the position in the employer's discretion or an employee does not apply while the position is posted).

SECTION 22.2 - Procedure: When a vacancy occurs, and the urgency of Company Client's requirements allow, the Employer shall provide a copy of the vacancy notice to the Shop Steward for posting on the employees' bulletin board for a period of at least one (1) week. The duties and basic qualifications for the job shall be specifically set forth in the notice. After the notice period has elapsed, the Employer shall select the most senior qualified applicant who applies and meets the qualifications posted for the position, if one is available. If no one from the bargaining unit is interested in such vacancy then the employer may hire any employee from any source. The Employer shall disclose, to the Union, the lists and facts upon which it bases its determination if requested.

SECTION 22.3 - Probation: An employee, promoted to a higher classification, shall be on probationary status, for a period of ninety (90) calendar days. If it is established that the employee is unable to perform the work required by the position, he/she shall be returned to his/her previous classification, provided the vacancy created by the promotion has not been filled. Before filling a position of someone that has been promoted, the Employer will evaluate whether or not the promoted employee is complying with the required performance standards. If the employer reasonably finds that the promoted employee is not complying with such required performance standards, then that employee will be given the option to return to his previous position before it's been filled by the Employer. If after been given such evaluation the Employee decides to remain in the promoted position but later does not pass the probation period, then such employee will be returned to his/her previous position if still available, otherwise such employee will be placed on layoff status.

ARTICLE 23 - DISCRIMINATION

SECTION 23.1. It is agreed by the Employer and the Union that there shall be no unlawful discrimination by the Employer or the Union against any employee by reason of race, creed, religion, color, sex, age, disability, sexual orientation, national origin, gender identity or expression, veteran's status, or because of their involvement in or refraining from participating in union activities or any other protected classification, in accordance with all applicable laws.

ARTICLE 24 - SAVING CLAUSE

SECTION 24.1. Should any court find any part of this Agreement to be invalid, it shall not invalidate the remaining provisions.

ARTICLE 25 - SUCCESSIONSHIP

SECTION 25.1. The Employer will promptly furnish the Union notice of termination of any of its cleaning contracts at this location, and will promptly thereafter offer the Union the opportunity to meet and negotiate the effects of such termination on bargaining unit Employees.

ARTICLE 26 - SUBCONTRACTING

SECTION 26.1. The Company shall have the sole and exclusive right to subcontract work. The Employer will provide reasonable advance notice of intent to subcontract any of the work covered by this Agreement, except for work that is presently sub-contracted (including cleaning windows and cleaning garages).

ARTICLE 27 - LABOR-MANAGEMENT COMMITTEE

SECTION 27.1. The Union and the Employer both agree that in the interest of efficient management and harmonious Employee relations, it is desirable that meetings be held between representatives of the Employees and management when requested by either party, but meetings shall not be held more frequently than quarterly, unless agreed to by both parties. Such meetings shall be exclusive of the grievance procedure and grievances shall not be considered at such meetings, nor shall negotiations for the purposes of altering the terms of this agreement be held at such meetings.

SECTION 27.2. The committee shall be made up of no more than 3 representatives of management and 3 representatives of the Employees. The representatives shall be released from the normal duties to attend meetings which shall be scheduled at mutually agreed upon times and upon reasonable notice.

ARTICLE 28 - NO STRIKE AND NO LOCKOUT

SECTION 28.1. The Union, its officers, agents, representatives and members shall in no way, directly or indirectly, authorize, call, cause, assist, encourage participate in, ratify, condone or, sanction any strike, sympathy strike, sit down; slow down, picketing; boycott, cessation or stoppage of work, or other interference or interruption of work during the duration of this Agreement. The Employer shall have the right to discharge, for cause, with loss of all rights and benefits, suspend, or otherwise discipline any or all employees who incite, induce, encourage, or participate in any of the above-enumerated activities.

SECTION 28.2. During the term of this Agreement, the Company shall not engage in any lockout of its employees.

ARTICLE 29 - IMMIGRATION

SECTION 29.1. Recognizing that questions involving an employee's immigration/work authorization status or personal information may arise during the course of his/her employment, and that errors in an employee's documentation may be due to mistake or circumstances beyond an employee's control, the Employer agrees to the following:

- (a) In the event an issue arises involving the immigration status, employment eligibility, or social security number of an employee, the Employer shall promptly notify the employee in writing.
- (b) If permissible under applicable law and/or regulations, the affected employee shall be

afforded reasonable opportunity to remedy the identified problem before any adverse action is taken.

SECTION 29.2. Any lawful corrections in the employee's documentation, name, or social security number shall not be considered new employment or a break in service.

ARTICLE 30 - MAINTENANCE OF CONDITIONS

SECTION 30.1. Nothing in this Agreement shall be construed to allow for the reduction in the wage rates, health and welfare contribution rates, retirement contribution rates, or vacation accrual rates specifically and expressly identified in this Agreement, or any other benefits specifically and expressly identified in this Agreement.

ARTICLE 31 - DURATION OF AGREEMENT

SECTION 31.1. This Agreement, entered into this 1st day of April 2024 shall remain in full force and effect until March 30, 2027 and shall continue in effect from year to year thereafter, unless written notice is given by the Union or the Employer ninety (90) days prior to the expiration date of its desire to modify, amend or terminate this Agreement.

SEIU Local 32BJ

Gabriel Calderon, esq.

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3/31/24

DATE

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Jamila Stanford

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3/31/2024

DATE

Melissa Marousek

Melissa Marousek, CHRO
J&J Worldwide Services, Inc.

4/3/2024

DATE